

ALITO, J., dissenting

Fifth, it is not accurate to say that Justice White based his conclusion on a cost-benefit analysis of requiring jury unanimity. His point, rather, was that what the Court had already identified as the fundamental purpose of the jury-trial right was not undermined by allowing a verdict of 11 to 1 or 10 to 2.

I cannot say that I would have agreed either with Justice White’s analysis or his bottom line in *Apodaca* if I had sat on the Court at that time, but the majority’s harsh criticism of his opinion is unwarranted.

What about Justice Powell’s concurrence? The majority treats Justice Powell’s view as idiosyncratic, but it does not merit that derision. Justice Powell’s belief that the Constitution allows the States a degree of flexibility in the interpretation of certain constitutional rights, although not our dominant approach in recent years, *McDonald*, 561 U. S., at 759–766, has old and respectable roots. For a long time, that was the Court’s approach. See *id.*, at 759–761. Only gradually did the Court abandon this “two-tier” system, see *id.*, at 762–767, and it was not until *Duncan, supra*, at 154–158, decided just four years before *Apodaca*, that the Sixth Amendment jury-trial right was held to apply to the States at all. Justice Powell’s approach is also not without recent proponents, including, at least with respect to the Second Amendment, Justices now in the majority.²⁷

powers in summoning jurors.” Alschuler & Deiss, A Brief History of the Criminal Jury in the United States, 61 U. Chi. L. Rev. 867, 879–880 (1994). And “American trial judges . . . routinely summarized the evidence for jurors and often told jurors which witnesses they found most credible, and why.” Sklansky, Evidentiary Instructions and the Jury as Other, 65 Stan. L. Rev. 407, 454 (2013). Any attempt to identify the aspects of late 18th-century practice that were incorporated into the Sixth Amendment should take the full picture into account and provide a principle for the distinction.

²⁷ As recently as 2010, prominent advocates urged us to hold that a provision of the Bill of Rights applies differently to the Federal Government and the States. In *McDonald*, 561 U. S. 742, the city of Chicago and some